Tips for Talking to the Police



Don’t consent to a search

- Say “No,” and tell the police to come back with a warrant.
- If you voluntarily agree to a search, police don’t need a warrant to enter your house or search your computer.

Ask to see a search warrant

- If the police say they have a warrant, you should ask to see it and check that it lists the correct name, address, and is signed by a judge.
- Make sure police are only searching the areas the warrant authorizes them to search.

You can stay silent

- You don’t have to speak to the police. Anything you tell them can be used against you.
- You don’t have to give your encryption keys or passwords to the police. But, be prepared to surrender your devices if they are named in a warrant and to possibly be detained.
- If you decide to talk to the police, tell them the truth—lying to the police is a crime.
- Once the police are searching your home or digital device, don’t interfere or obstruct their search, but know that you don’t need to help them in their search.

Talk to a lawyer

- If the police want to search your home, your business, or your electronic devices—or even just talk to you—you should talk to a lawyer before any search or discussion with the police, if possible.
- A lawyer can help you deal with the police and may be able to help you get back any electronic devices the police took from you while searching.

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